

1. Item 1 (continued).

Children supported:	1 child	2 children	3 children	4 children	5 or more children
Base Support: (includes support plus or minus premium adjustment for health-care insurance)					
Support:	\$0.00	\$	\$	\$	\$
Premium adjust:	\$0.00	\$	\$	\$	\$
Subtotal:	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00
Ordinary medical:	\$0.00	\$	\$0.00	\$	\$
Child care:	\$	\$0.00	\$	\$	\$
Other:	\$	\$	\$	\$	\$
Benefit credit:	\$	\$	\$	\$	\$
Total:	\$0.00	\$0.00	\$0.00	\$0.00	\$0.00

☐ Support was reduced because payer's income was reduced.

Uninsured Health-Care Expenses. All uninsured health-care expenses exceeding the annual ordinary medical amount will be paid 47 % by the plaintiff and 53 % by the defendant. Uninsured expenses exceeding the annual ordinary medical amount for the year they are incurred that are not paid within 28 days of a written payment request may be enforced by the friend of the court. The annual ordinary medical amount is ~~\$500 for each~~ \$0.00.

Obligation Ends. Except for child care, or as otherwise ordered, support obligations for each child end on the last day of the month the child turns age 18.

- ☒ **Post-majority Support:** The following children will be attending high school on a full-time basis after turning 18 years of age. Therefore, the support obligation for each specific child ends on the last day of the month as follows, except in no case may it extend beyond the time the child reaches 19 years and 6 months of age:

(Specify name of child and date obligation ends.)
Lincoln Watson 05/2041

Child Care. The parties must notify each other of changes in child-care expenses and must additionally notify the friend of the court if the changes end those expenses. The child-care obligation for each child ends on August 31 following the child's 12th birthday, at which time the total child care obligation reduces by that child's pro rata share unless specified differently in this order.

2. **Health-Care Coverage.** For the benefit of the children, the ☐ plaintiff ☒ defendant shall maintain health-care coverage (as defined in MCL 552.602) that includes payment for hospital, dental, optical, and other health-care expenses when that coverage is accessible to the child and available at a reasonable cost. The reasonable cost is the parent's net cost of adding the children to the parent's coverage
☐ up to a maximum of \$ _____ for plaintiff. ☐ up to a maximum of \$ _____ for defendant.
☒ not to exceed 6% of the plaintiff's/defendant's gross income.
3. **Income Withholding.** Income withholding takes immediate effect. Payments shall be made through the Michigan State Disbursement Unit unless otherwise ordered in item 12.
4. **Qualified Medical Support Order.** This order is a qualified medical support order with immediate effect pursuant to 29 USC 1169. To qualify this order, the friend of the court shall issue a notice to enroll pursuant to MCL 552.626b. A parent may contest the notice by requesting a review or hearing concerning availability of health care at a reasonable cost.
5. **Retroactive Modification, Surcharge for Past-Due Support, and Liens for Unpaid Support.** Except as provided by MCL 552.603, support is a judgment the date it is due and is not modifiable retroactively. A surcharge may be added to past-due support. Unpaid support is a lien by operation of law and the payer's property can be encumbered or seized if an arrearage accrues in an amount greater than the periodic support payments payable for two months under the payer's support order.

6. **Address, Employment Status, Health Insurance.** Both parties shall notify the friend of the court in writing of: a) their mailing and residential addresses and telephone numbers; b) the names, addresses, and telephone numbers of their sources of income; c) their health-maintenance or insurance companies, insurance coverage, persons insured, or contract numbers; d) their occupational or driver's licenses; and e) their social security numbers unless exempt by law pursuant to MCL 552.603. Both parties shall notify the friend of the court in writing within 21 days of any change in this information. Failure to do so may result in a fee being imposed.

7. **Foster-Care Assignment.** When a child is placed in foster care, that child's support is assigned to the Michigan Department of Health and Human Services while under the state's jurisdiction and to the funding county while placed in a county-funded program.

8. **Redirection and Abatement.** As provided by MCL 552.605d and subject to statutory procedures, the friend of the court may redirect support paid for a child to the person who is providing the actual care, support, and maintenance of that child, and shall abate support charges to zero for a child who resides on a full-time basis with the payer of support or if the payer of support will be incarcerated for 180 consecutive days or more without the ability to pay.

- ☒ When friend of the court becomes aware that the payer's condition meets the definition of incapacitation as defined in the current or subsequent Michigan Child Support Formula, monthly support charges shall abate and be temporarily reduced to zero effective the date that the friend of the court office provides notice of the abatement to the parties and to the court. Support charges shall be reinstated effective 60 days after the incapacitation ends. The office shall provide notice of reinstatement to the parties and to the court that specifies the date charges will be effective.

Either party may object to the abatement or reinstatement by filing a written objection with the court within 21 days following when the notice was filed, or by filing a motion. If a timely objection is received, the friend of the court shall either set the objection for hearing or complete a support review with an effective date no earlier than the date of filing of that notice.

Based on a motion by either party or a recommendation following a review by the friend of the court, the amount abated may be later corrected based on the parties' incomes or ability to pay during the abatement period.

9. **Fees.** The payer of support shall pay statutory and service fees as required by law.

10. **Review.** Each party to a support order may submit a written request to have the friend of the court review the order. The friend of the court is not required to act on more than one request received from a party each 36 months. A party may also file a motion to modify this support order.

- ☒ 11. **Michigan Child Support Formula Deviation.** The support provisions ordered do not follow the Michigan Child Support Formula. The attached deviation addendum (FOC 10d) provides the basis for deviation and the required findings by the court.

- ☒ 12. **Other:** (Attach separate sheets as needed.)

Trial was conducted before Judge McNeill on July 17, 2024. Judge Ordered that a Deviation shall enter, setting child support at \$0.00 per month. Judge McNeill also Ordered a new UCSO shall enter with effective date July 17, 2024. A Deviation UCSO is also being filed with the Court.

Upon entry of this Order, if an overpayment on this case has occurred, the person that has received the overpayment shall directly reimburse the payer the amount of the overpayment. The Friend of the Court will not keep track of the overpayment reimbursement payments made pursuant to this Order.

13. **Prior Orders.** This order supersedes all prior child support orders and all continuing provisions are restated in this order. Past-due amounts owed under any prior support order in this case are preserved and paid at the rate calculated using the arrearage guideline in the Michigan Child Support Formula.

Judge signature and date

Plaintiff (if consent/stipulation)	Date	Defendant (if consent/stipulation)	Date
Plaintiff's attorney	Date	Defendant's attorney	7-18-2024

Prepared by: Jennifer L. Barnes, P55406
Name (type or print)

FOC Approval: AS

CERTIFICATE OF MAILING

I served a copy of this uniform child support order on the parties or their attorneys by first-class mail addressed to their last-known addresses as defined by MCR 3.203. ☐ I also served the Deviation Addendum (FOC 10d) with this order. I declare under the penalties of perjury that this certificate of mailing has been examined by me and that its contents are true to the best of my information, knowledge, and belief.

Date

Signature

14th **STATE OF MICHIGAN**
JUDICIAL CIRCUIT
Muskegon **COUNTY**

UNIFORM CHILD SUPPORT ORDER
DEVIATION ADDENDUM (PAGE 4)

CASE NO.
2024-001507-DC

Court address
990 Terrace St., Muskegon, MI 49442

Court telephone no.
231.724.6251

Plaintiff's name
Andrew James Pigors

v

Defendant's name
Emily Ann Watson

THE COURT FINDS:

1. Paragraph(s) 1 in the preceding pages of the uniform order deviate from the Michigan Child Support Formula and are warranted to avoid an unjust or inappropriate result.
2. Pursuant to MCL 552.605(2), it has been determined from the facts of this case that:
- a. The child support obligation that would be ordered by applying the Michigan Child Support Formula is:

Payer: Andrew James Pigors		Payee: Emily Ann Watson	
Children's names, birthdates, and annual overnights with payer:			
Children's names		Date of birth	Overnights
Lincoln Watson			182.5

Children supported:	1 child	2 children	3 children	4 children	5 or more children
Base support: (includes support plus or minus premium adjustment for health-care insurance)					
Support:	\$ -37.00	\$	\$	\$	\$
Premium adjust.	\$ 58.00	\$	\$	\$	\$
Subtotal:	\$ 21.00	\$ 0.00	\$ 0.00	\$ 0.00	\$ 0.00
Ordinary medical:	\$ -20.00	\$	\$	\$	\$
Child care:	\$	\$	\$	\$	\$
Other:	\$	\$	\$	\$	\$
Benefit credit:	\$	\$	\$	\$	\$
Total:	\$ 1.00	\$ 0.00	\$ 0.00	\$ 0.00	\$ 0.00
☐ Support was reduced because payer's income was reduced.					

Uninsured Health-Care Expenses. All uninsured health-care expenses exceeding the annual ordinary medical amount will be paid 47 % by the plaintiff and 53 % by the defendant. Uninsured expenses exceeding the annual ordinary medical amount for the year they are incurred that are not paid within 28 days of a written payment request may be enforced by the friend of the court. The annual ordinary medical amount is \$454.00.

Insurance. For the benefit of the children, the ☐ plaintiff ☒ defendant shall maintain health-care coverage through an insurer (as defined in MCL 552.602) that includes payment for hospital, dental, optical, and other health-care expenses when that coverage is available at a reasonable cost, including coverage available as a benefit of employment or under an individual policy

☐ up to a maximum of \$ _____ for plaintiff.

☐ up to a maximum of \$ _____ for defendant.

☒ not to exceed 6% of the plaintiff's/defendant's gross income.

(SEE SECOND PAGE)

Approved, SCAO

Original - Court
1st copy - Plaintiff

2nd copy - Defendant
3rd copy - Friend of the court

STATE OF MICHIGAN
14th JUDICIAL CIRCUIT
Muskegon COUNTY

UNIFORM CHILD SUPPORT ORDER
DEVIATION ADDENDUM (PAGE 5)

CASE NO.
2024-001507-DC

Court address
990 Terrace St., Muskegon, MI 49442

Court telephone no.
231.724.6251

Plaintiff's name
Andrew James Pigors

v

Defendant's name
Emily Ann Watson

(Item 2 continued.)

- b. Applying the Michigan Child Support Formula is unjust or inappropriate because: (Specify the deviation factors relied on.)
The costs required to administer this child support obligation outweigh the benefits of processing such an Order.
Factor #19

- c. The child support order deviates from the Michigan Child Support Formula as follows:
(Specify which provisions of the child support formula create an unjust or inappropriate result and explain how this order deviates from the provisions.)
At the Trial conducted on July 17, 2024, the Court Ordered that a deviation, effective May 3, 2024, shall be entered based upon the Michigan Child Support Formula Deviations, specifically 1.04(E)(19), as "the amount calculated does not exceed \$20, and the administrative cost to enforce and process payments outweighs the benefit of the minimal amounts."

- d. The value of property or other support awarded instead of the payment of child support: (If not applicable, put none.)

Plaintiff (if consent/stipulation)

Date

Defendant (if consent/stipulation)

Date

Plaintiff's attorney

Date

Defendant's attorney

Date

Prepared by: Jennifer L. Barnes, P55406
Name (type or print)

FOC Approval:

NOTE: When deviating, this form must be completed, attached, and served along with the rest of the Uniform Child Support Order. The proof of service on the Uniform Child Support Order must indicate this form was included.